

TOME V

The Philosophy of Law

Nabek — Off the Ship

August 5, 2026

Hobbes, Savigny, Kelsen, and international treaties

FIFTH PART

What the Philosophy of Law Confesses in Secret

Now, I will speak to you of what the philosophers of law have written. Not to put you to sleep. So that you understand to what point their own science betrays them. They know. They have known for centuries that the legal person is a fiction. And they continue to build palaces upon this lie. They continue to pretend that the cage is a house. That the mask is a face. That the number is a —

THOMAS HOBBES — THE LEVIATHAN (1651)

Hobbes wrote the *Leviathan* in 1651. He devotes an entire chapter to persons. He says this: a person is one whose words or actions are considered as his own, or as representing those of another. When the actions are his own, it is a natural person. When they represent another, it is a feigned or —

Hobbes subdivides the artificial person into two categories. There is the one who can act for himself AND represent others — like a lawyer, an ambassador. And there is the purely artificial person — the Church, the hospital, the bridge, the State. These entities cannot act by themselves. They cannot authorize their own representatives. They are inanimate things dressed as persons. Masks without faces. Ships without —

The State, says Hobbes, is "this great Leviathan called Republic or State, which is but an Artificial Man." An artificial man. It is not I who says it. It is Hobbes. The State is a machine built by art. It has no soul. It has no breath. It is an automaton that living beings maintain while forgetting that they are alive. And this automaton, they call sovereignty. They call it authority. They call it necessity. But it is a machine. A fiction. A construction of paper and —

Hobbes also says that the sovereign represents two persons. A natural one and a political one. When he acts for himself, he is a man. When he acts for the State, he is a fiction. And in this political capacity, he is the unlimited representative. The citizens have authorized without restriction all the actions of the sovereign. They are their authors. Even when he —

I say something else. I am not the author of this machine. I did not authorize it. I do not own its acts. I de-

authorize myself. It is precisely the inverse of the Hobbesian contract: instead of transferring my right to act to the sovereign, I retract it. I refuse to be the author of the colonial act. I refuse to be the owner of the crimes committed in my —

FRIEDRICH CARL VON SAVIGNY — THE THEORY OF FICTION (19TH CENTURY)

Savigny, German jurist, is the principal theorist of fiction. He sees the legal entity as an artificially created being, capable of owning goods, but devoid of free will. According to him, only the natural person — the human being — possesses free will. The legal person — the corporation, the State — is a legal fiction. An artificial creation of law. It can own goods, but it has no will of its own. It exists only through its —

Think about that. The corporation you serve, the bank that owns you, the government that taxes you — these are entities without will. They do not think. They do not feel. They calculate. And yet, one obeys them as if they were gods. One sacrifices one's time to them. One sacrifices one's land to them. One sacrifices one's children to them. One sacrifices one's soul to them. And all that for what? So that a fiction may grow. So that a mycelium may spread. So that a machine may —

Savigny says it clearly: the corporation has no will of its own. It exists only through its members. If the members withdraw, the corporation collapses. It is mathematical. It is mechanical. It is obvious. And yet, no one does it. Because fear is stronger than logic. Because habit is stronger than will. Because indoctrination is deeper than —

HANS KELSEN — THE PURE THEORY OF LAW

Kelsen goes further. He denies any distinction between natural person and legal person. For him, all legal personality is a technical fiction. A personification of a complex of norms, rights and duties. The "natural person" is no more real than the "legal person." Both are legal constructions deriving their validity from —

Kelsen says: "A subject of law is that which is the object of a legal obligation or a subjective right." It is not a thing. It is a form of being. A phase in the process of concretization of the —

Neil MacCormick, critic of Kelsen, summarizes: "The so-called natural person is, in its legal personality, necessarily as juridical as the so-called legal person."

This means that from the point of view of law, even the human being is a construction. The law does not see the living. It sees the subject. It sees the taxpayer. It sees the citizen. It sees the number. And it calls that a person. But it is not a person. It is a label. It is a box. It is a line in a —

I answer: if everything is fiction, then I choose to leave the novel. I am not a character in their book. I am the man who walks upon the earth. The law may describe me as it wishes. It may call me citizen, taxpayer, individual, subject. These words do not touch me. They are labels on a suitcase. I am not the suitcase. I am the breath. I am the river. I am the —

WHAT THE INTERNATIONAL TREATIES CONFESS

The American Convention on Human Rights, in its Article 1(2), defines "person" as "every human being." Thus excluding legal persons from the field of fundamental freedoms by full right. Its preamble says: "The essential rights of man are not derived from the fact of being a national of a certain State, but are based upon

the attributes of the human personality."

The Universal Declaration of Human Rights (1948), Article 6, says: "Everyone has the right to recognition everywhere as a person before the law." But this recognition was debated. Some drafters found the concept too technical. Others, in the aftermath of the Second World War, insisted on its necessity to prevent human beings from being placed outside the law — as had been the slaves and the deported. The right to recognition as a person before the law is considered absolute — not susceptible to restriction. It aims precisely to prevent a human being from being dispossessed of his legal personality, as occurred under —

But I say something else. I say that legal personality itself has become modern slavery. One no longer dispossesses the human being of his legal personality. One obliges him to wear one that has been imposed upon him. One does not place him outside the law. One places him within merchant law. Within the register. Within the number. It is the inverse of the problem, but it is the same violence. It is the same deprivation. It is the same putting into —

The International Covenant on Civil and Political Rights (ICCPR, 1966), Article 16, repeats: "Everyone shall have the right to recognition of his legal personality everywhere." The ECHR, in its Article 34, distinguishes "any person" and "any non-governmental organization." The English version says "any person," but the French is clear: *personne physique*. Human being. Flesh. Blood. Not entity. Not —

The Rome Statute of the ICC, Article 25, says: "The Court shall have jurisdiction over natural persons." Legal persons were proposed in 1998, and rejected. Even international criminal justice refuses to grant moral individuality to artificial entities. It knows. It knows that responsibility can exist only in the living —

And then there are Indigenous peoples. The United Nations Declaration on the Rights of Indigenous Peoples (2007) does not define Indigenous peoples as "legal persons" in the Western legal sense. It recognizes the right to self-identification, the right to land, the right to political autonomy. The absence of a fixed legal definition is a deliberate normative choice — to prevent the State from denying recognition by criteria of —

ILO Convention 169 (1989) uses the term "indigenous and tribal peoples" without reducing them to administrative legal categories. It insists on consent, consultation, Indigenous control over their own ways of life. Self-identification as the basis of —

But the trap is there. Contemporary international law recognizes Indigenous peoples as holders of collective rights with an emerging legal personality. This evolution poses a fundamental problem: it transforms resistance into "administrative management of difference." The colonial State needs clearly defined identities to establish registers, negotiate treaties with "identifiable parties," allocate funds to delimited groups. Even recognition becomes a tool of —

That is why I do not seek this recognition. I do not want to be a category in their register. I do not want to be a number in their database. I do not want to be an "emerging legal person." I am a living being. I am a man. I am Nabek. And that —

There are two canoes

and a river that wait

for those who will choose

to cease being mere indolence.

But the choice is theirs.

And the choice is —

And most will not choose.

you know it.

Remain being nonetheless.

Like the beech tree.

Even when no one comes to rest beneath it.

Repudiate the consent.

Not in words.

In act.

In —

They were full.

Of peoples. Of nations. Of law.

Of —

They were full.

Of peoples. Of nations. Of law.

Of —

They were full.

Of peoples. Of nations. Of law.

Of —

Freedom of conscience!

Freedom of speech!

Freedom of association!

Freedom of action!

Self-determination!

WHAT THE JUDGMENTS ADD TO THIS PHILOSOPHY

I say that the legal person is a colonial fiction. The philosophers and judges, for their part, have traced the contours of this fiction for —

The European Court of Human Rights, in *Uj v. Hungary* (19 July 2011), established this fundamental distinction: there is a difference between an attack on the reputation of a natural person, which can have repercussions on the dignity of that person, and an attack on the commercial reputation of a company, which has no moral dimension. The Court refused to use Article 8 — respect for private life — to protect the reputation of the legal person. The right to reputation of legal persons exists, but it is orphaned. It has no foundation in dignity. Because dignity is the attribute of the —

In *Comingersoll S.A. v. Portugal* (6 April 2000, Grand Chamber), a company claimed moral damages. The ECHR granted damages, but classified them as affecting the company's reputation, uncertainty in planning, disruption of management. The fundamental critique: these damages, though classified as "moral," are in reality emphatically pecuniary. A company has no psychic suffering, no wounded dignity. Its "moral damages" are economic —

In *Steel and Morris v. United Kingdom* (15 February 2005), two modest citizens had criticized McDonald's. Condemned to massive damages, they seized the ECHR. The Court noted that the damages were very substantial compared to their income, and that the plaintiff companies were powerful commercial corporations. The ECHR concluded that the damages were disproportionate and condemned the United Kingdom for violation of —

The lesson: the European Court is not indifferent to factual inequalities. It rebalances the stakes between natural person and legal person, granting particular importance to the freedoms of natural persons. Even in their palaces of justice, they know that the word of a living being weighs more than the reputation of a —

But I do not go before the ECHR so that it may recognize me. I do not seek the recognition of an enslaving, genocidal institution. I cite these judgments so that you understand: even their own priests secretly admit that the god they serve is an idol. A wooden idol. An artificial person. A Leviathan of —

Nabek — Off the Ship — Island of the Turtle — Year 410 of the 1616 Treaty

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